

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 10, 2026
8:30 a.m./1:30 p.m.

1. MARK BECKER V. LILLIAN BECKER

25FL0559

On May 4, 2026, Petitioner filed a Request for Order (RFO) seeking to compel further responses to form interrogatories and compliance with Family Code § 2107. He concurrently filed a Memorandum of Points and Authorities in support thereof. All required documents were served on May 29th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served. Respondent has knowledge of the requests pending before the court and chose not to file a response. The court finds good cause to treat her lack of response as an admission that the claims made in the RFO are meritorious.

Petitioner is requesting an order directing Respondent to produce her completed preliminary and final declarations of disclosure, file a fully executed FL-141 with the court, and serve full and complete responses to Form Interrogatories – Family Law. He requests monetary sanctions pursuant to Civil Procedure § 2030.290(c), Family Code § 2107(c) in the amount of \$1,500, and Family Code § 271 in the amount of \$1,000.

Family Code sections 2104 and 2105 impose on each party the obligation of making preliminary and final disclosures of assets within the specified timeframes. Where a party fails to comply with their disclosure requirements, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). “[T]he court *shall*...impose monetary sanctions against the noncomplying party...unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

In addition to the general disclosure requirements as set forth in Family Code §§ 2104 and 2105, the parties may also conduct formal discovery in accordance with the Civil Discovery Act. Pursuant to the Civil Discovery Act, “[t]he party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory...” Cal. Civ. Pro. § 2030.210(a). Generally speaking, responses to interrogatories are due within 30 days of the date of service. Cal. Civ. Pro. § 2030.260. If a party fails to provide timely responses, that party waives any right to object to the interrogatories. Cal. Civ. Pro. § 2030.290 (a). Monetary sanctions may also be imposed for failure to submit to an

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authorized form of discovery pursuant to Civil Procedure § 2023.030 & § 2023.010 so long as the imposition of the sanctions is not unjust. Civ. Pro. § 2023.030(a).

In keeping with the above, Petitioner's requests to compel Respondent's compliance with her disclosure and discovery obligations are granted. Respondent is ordered to serve full and complete verified responses, without objections, to Form Interrogatories – Family Law no later than September 21, 2026. Respondent is further ordered to serve her full and complete preliminary and final declarations of disclosure, with any required attachments, no later than September 21, 2026. She is ordered to file her fully executed FL-141 with the court immediately after service of her preliminary and final declarations of disclosure.

Turning to the issue of sanctions, after reviewing Respondent's July 20, 2026 Income and Expense Declaration, the court is concerned that the imposition of monetary sanctions may cause undue hardship to Respondent. That said, there is the possibility that sanctions may be paid out of any equalization or property interest at the time of trial depending on the assets of the parties. Accordingly, the court is reserving jurisdiction on the issue of monetary sanctions until the time of trial.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: RESPONDENT IS ORDERED TO SERVE FULL AND COMPLETE VERIFIED RESPONSES, WITHOUT OBJECTIONS, TO FORM INTERROGATORIES – FAMILY LAW NO LATER THAN SEPTEMBER 21, 2026. RESPONDENT IS FURTHER ORDERED TO SERVE HER FULL AND COMPLETE PRELIMINARY AND FINAL DECLARATIONS OF DISCLOSURE, WITH ANY REQUIRED ATTACHMENTS, NO LATER THAN SEPTEMBER 21, 2026. SHE IS ORDERED TO FILE HER FULLY EXECUTED FL-141 WITH THE COURT IMMEDIATELY AFTER SERVICE OF HER PRELIMINARY AND FINAL DECLARATIONS OF DISCLOSURE.

THE COURT IS RESERVING JURISDICTION ON THE ISSUE OF MONETARY SANCTIONS UNTIL THE TIME OF TRIAL.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.